fant to be debarred of his right by lapſe to the biſhop. An infant may alſo purchaſe lands, but his purchaſe is incomplete: for, when he comes to age, he may either agree or diſagree to it, as he thinks prudent or proper, without alleging any reaſon; and ſo may his heirs after him, if he dies without having completed his agreement[a]. It is, farther, generally true, that an infant, under twenty one, can make no deed that is of any force or effect: yet[b] he may bind himſelf apprentice by deed indented, or indentures, for ſeven years; and[c] he may by deed or will appoint a guardian to his children, if he has any. Laſtly, it is generally true, that an infant can make no other contract that will bind him: yet he may bind himſelf to pay for his neceſſary meat, drink, apparel, phyſic, and ſuch other neceſſaries; and likewiſe for his good teaching and inſtruction, whereby he may profit himſelf afterwards[d]. And thus much, at preſent, for the privileges and diſabilities of infants.

[a] Co. Litt. 2.
[b] Stat. 5 Eliz. c. 4.
[c] Stat. 12 Car. II. c. 24.
[d] Co. Litt. 172.

CHAPTER THE EIGHTEENTH.

OF CORPORATIONS.

WE have hitherto conſidered perſons in their natural capacities, and have treated of their rights and duties. But, as all perſonal rights die with the perſon; and, as the neceſſary forms of inveſting a ſeries of individuals, one after another, with the ſame identical rights, would be very inconvenient, if not impracticable; it has been found neceſſary, when it is for the advantage of the public to have any particular rights kept on foot and continued, to conſtitute artificial perſons, who may maintain a perpetual ſucceſſion, and enjoy a kind of legal immortality.

THESE artificial perſons are called bodies politic, bodies corporate, *(corpora corporata)* or corporations: of which there is a great variety ſubſiſting, for the advancement of religion, of learning, and of commerce; in order to preſerve entire and for ever thoſe rights and immunities, which, if they were granted only to thoſe individuals of which the body corporate is compoſed, would upon their death be utterly loſt and extinct. To ſhew the advantages of theſe incorporations, let us conſider the caſe of a college in either of our univerſities, founded *ad ſtudendum et orandum*, for the encouragement and ſupport of religion and learning. If this was a mere voluntary aſſembly, the individuals which compoſe it might indeed read, pray, ſtudy, and perform ſcholaſtic exerciſes together, ſo long as they could agree to do ſo: but they could

could neither frame, nor receive, any laws or rules of their conduct; none at leaſt, which would have any binding force, for want of a coercive power to create a ſufficient obligation. Neither could they be capable of retaining any privileges or immunities: for, if ſuch privileges be attacked, which of all this unconnected aſſembly has the right, or ability, to defend them? And, when they are diſperſed by death or otherwiſe, how ſhall they transfer theſe advantages to another ſet of ſtudents, equally unconnected as themſelves? So alſo, with regard to holding eſtates or other property, if land be granted for the purpoſes of religion or learning to twenty individuals not incorporated, there is no legal way of continuing the property to any other perſons for the ſame purpoſes, but by endleſs conveyances from one to the other, as often as the hands are changed. But, when they are conſolidated and united into a corporation, they and their ſucceſſors are then conſidered as one perſon in law: as one perſon, they have one will, which is collected from the ſenſe of the majority of the individuals: this one will may eſtabliſh rules and orders for the regulation of the whole, which are a ſort of municipal laws of this little republic; or rules and ſtatutes may be preſcribed to it at it's creation, which are then in the place of natural laws: the privileges and immunities, the eſtates and poſſeſſions, of the corporation, when once veſted in them, will be for ever veſted, without any new conveyance to new ſucceſſions; for all the individual members that have exiſted from the foundation to the preſent time, or that ſhall ever hereafter exiſt, are but one perſon in law, a perſon that never dies: in like manner as the river Thames is ſtill the ſame river, though the parts which compoſe it are changing every inſtant.

THE honour of originally inventing theſe political conſtitutions entirely belongs to the Romans. They were introduced, as Plutarch ſays, by Numa; who finding, upon his acceſſion, the city torn to pieces by the two rival factions of Sabines, and Romans, thought it a prudent and politic meaſure, to ſubdivide theſe two into many ſmaller ones, by inſtituting ſeparate ſocieties of every